

02:00 PM **LINE 4**

24-CIV-01161

JEFERSON ALEXIS ZECENA CANO, ET AL VS. GPI BUILDERS INC., ET AL

JEFERSON ALEXIS ZECENA CANO
GPI BUILDERS INC.

T P SKINNER
SARIT SIMHAYOFF-COEHN

Motion to Compel T-Mobile to Comply with Subpoena Duces Tecum

TENTATIVE RULING:

The unopposed Motion to Compel T-Mobile U.S., Inc.'s Compliance with Civil Subpoena *Duces Tecum* filed by plaintiff Jeferson Alexis Zecena Cano is **GRANTED**.

Plaintiff alleges that defendants misclassified him as an independent contractor when they employed him for three remodeling projects, and failed to reimburse him for expenses related thereto, resulting in numerous violations of employment law.

Plaintiff has moved for a court order compelling non-party T-Mobile U.S., Inc. to produce documents responsive to the civil subpoena *duces tecum* which he served upon it.

On November 21, 2025, plaintiff served a subpoena on T-Mobile seeking his own phone records. (Skinner Decl., ¶ 4, & exh. A). T-Mobile objected on January 5, 2026. (*Id.*, ¶ 5, & exh. B.)

T-Mobile refused to produce the documents, but indicated that it would comply with a subpoena that was accompanied by a valid court order. T-Mobile's objection appears primarily to be that since the target phone numbers are those of a subscriber in California, the subpoena is void unless accompanied by the accountholder's consent. (Skinner Decl., exh. B at p. 9.) However, the subpoena did include such consent. (*Id.*, exh. A, at p. 7.) Nonetheless, the objection clearly states that, "COURT ORDER REQUIRED FOR RELEASE OF RECORDS." (*Id.*, exh. B, at p. 9.)

There is good cause to compel the production of the requested documents.

The documents are pertinent to showing the relationship between plaintiff and defendant Bennaim, if any. Bennaim denies knowing or communicating with plaintiff. (Skinner Decl., ¶ 3.)

Plaintiff also asserts that he owns the phone number and account with T-Mobile, and created the records. The court notes that the subpoena actually seeks the records of two phone numbers described as assigned to plaintiff, and includes but is not limited to calls to a specified third phone number (Skinner Decl., exh. A, at p. 6), which presumably belongs to defendant Bennaim.

Plaintiff further asserts that he has authorized the subpoena for his own records, which is shown. (Skinner Decl., exh. A, at p. 7.) Plaintiff argues that he would be burdened by undue delay, and that T-Mobile's failure to respond properly to his subpoena has deprived him of the right to pretrial discovery.

Neither T-Mobile nor any party has opposed the motion. Accordingly, the motion is **GRANTED**. The court orders T-Mobile to produce the requested records within thirty (30) days of notice of entry of the formal order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CIV-05845

YONGJUN ZHAO VS. YI WANG, ET AL

YONGJUN ZHAO
YI WANG

MARK J BLUER

Motion to Quash Service of Summons

TENTATIVE RULING:

Defendants Yi Wang and Cracking Pot, Inc. move to quash plaintiff Yongjun Zhao's service of summonses on each of them. Defendants previously filed a motion to set aside entries of default. At the hearing, the court declined to adopt the tentative ruling at that time and noted the defendants intended to file a motion to quash. (Minute Order, January 21, 2026.)

For reasons explained below, defendants' motion to set aside default is **GRANTED**. Defendants' motion to quash is also **GRANTED**.

On March 26, 2025, plaintiff requested entry of default against defendants. Upon receiving the request, the Clerk of the Court entered default against both defendants. (Request to Enter Default, filed March 26, 2025.)

Defendants argued (in both motions) that plaintiff's proofs of service fail to adequately establish that service was properly effected and that the documents were left with a person apparently in charge at defendants' place of business.

"[A] court gains jurisdiction over the defendant from the time the defendant is served with a copy of the summons and the complaint on which it's based, as required under the Code of Civil Procedure." (*Stancil v. Superior Ct.*, (2021) 11 Cal.5th 381, 392 (*Stancil*); Code Civ. Proc. §§ 410.50, 412.20.) "On a motion to quash service of summons, the plaintiff bears the burden of proving by a preponderance of the evidence that all jurisdictional criteria are met. [Citations.] The burden must be met by competent evidence in affidavits and authenticated documents; an unverified complaint may not be considered as supplying the necessary facts." (*Brown v. Garcia* (2017) 17 Cal.App.5th 1198, 1203, citations omitted.)

Service of process on an individual may be effected in various ways. A "summons may be served by leaving a copy of the summons and complaint at the person's . . . usual place of business, . . . in the presence of . . . a person apparently in charge of their office, place of business, . . ." followed by mailing a copy of the papers to the place where substituted service was made. (Code Civ. Proc., § 415.20, subd. (b).) Alternatively, where the plaintiff has been unable to effect personal or substituted service by reasonable diligence, upon application to and approval by the court, service may be made by email or publication. (*Id.*, §§ 413.30, 415.50.)
